Ethics & Technology Resources

Technology has become an integral part of modern legal practice, and with it comes the responsibility to understand how professional ethical obligations apply to the tools attorneys use every day. This page serves as a centralized resource to help California attorneys navigate the ethical dimensions of technology, from artificial intelligence to social media, in a manner consistent with the Rules of Professional Conduct and the State Bar Act.

MCLE toolkit on generative artificial intelligence

This toolkit introduces practical guidance on the Rules of Professional Conduct and the implications when using generative artificial intelligence (GenAI). The one-hour MCLE course, GenAI in Legal Practice: Opportunities, Risks, and Best Practices, equips attorneys with a foundational understanding of GenAI, its benefits in legal work, and ethical considerations like confidentiality, bias, and accountability. This toolkit is designed as a one-hour technology MCLE that can be taught to your organization's membership online or in person. It includes a lesson plan, PowerPoint presentation, interactive polling questions, and course handouts with citations. Developed by the State Bar of California's Office of Professional Competence, the materials are for educational purposes only and do not constitute legal advice.

Pursuant to MCLE requirements, California attorneys are required to complete at least one credit hour of continuing legal education addressing technology in the practice of law during each compliance period. Given the rapid rise of artificial intelligence in the legal profession, attorneys are strongly encouraged to prioritize AI-focused education to better understand the ethical responsibilities and practical implications that accompany its use in legal practice.

Additional resources

The following section provides California attorneys with a curated collection of resources addressing the professional responsibility and ethical obligations that arise from the use of technology in legal practice. Resources are organized by topic, including advisory ethics opinions and articles.

In addition, on May 14, 2026, the Board of Trustees approved updated revisions to the *Practical Guidance for the Use of Generative Artificial Intelligence in the Practice of Law*, originally published on November 16, 2023. This guidance was developed by the Committee on Professional Responsibility and Conduct to assist lawyers in navigating their ethical obligations when using generative artificial intelligence. The updated *Practical Guidance* reflects emerging developments in generative AI, including the use of agentic artificial intelligence, and incorporates clarifications aimed at supporting lawyers in the ethical and responsible use of these tools. The *Practical Guidance* will continue to serve as a living document that is periodically revised as the technology evolves and new issues are presented.

- Artificial Intelligence

- Online Communication (email, chat, blogs, etc.)
- Electronic Files (cloud computing, e-discovery, metadata, virtual law office, etc.)
- Advertising (website and email content issues)
- Social Media
- Internet/Email Scams
- Miscellaneous

Selected California Rules of Professional Court

The following highlights the relevant Rules of Professional Conduct governing attorney use of technology in legal practice.

- Rule 1.1, Comment [1] clarifies the duty of competence to include keeping abreast of technology in the practice of law (operative March 22, 2021)
- Rule 1.4, Comment [2] updates the duty to provide copies of significant documents to expressly permit provision by "electronic or other means"
- Rule 1.16(e) clarifies a lawyer's duty to release all client materials when terminating a representation to expressly include release of client materials created or held in "electronic or other form"
- Rule 4.4 requires a lawyer who receives inadvertently produced materials that obviously appear to be subject to the attorney-client privilege or confidential and privileged to immediately notify the sender
- Rule 7.2(a) clarifies the advertising rules to provide that a lawyer may advertise through "electronic means of communication, including public media"
- Rule 7.5, Comment clarifies the scope of the rule governing a lawyer's professional designation to include logos and "URLs"